

DPDP 2023

Digital Personal Data Protection Act, 2023

Digital Personal Data Protection Act (DPDP), 2023

User Query :

I registered on an online lending application and allowed access to my contacts because the app said it was necessary for processing the loan. After I missed one instalment, the company began calling people from my contact list and telling them about my loan. Some contacts also received messages containing my photograph and personal details. I never agreed to this use of my information. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 9/Digital Personal Data Protection Act (DPDP), 2023

Prepared by :

NyaySahayak

Date :

29 August 2026

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 4 — Grounds for processing personal data

Processing must have a lawful basis under the Act.

Section 5 — Notice

The Data Principal should receive the required notice about personal data and purpose.

Section 6 (1) — Consent

Consent must be free, specific, informed, unconditional and unambiguous and limited to the specified purpose/necessary data.

Section 11 — Right to access information about personal data

Includes information about processing and identities of Data Fiduciaries/processors with whom data has been shared, subject to the statutory text.

Section 13 — Right of grievance redressal

Provides a grievance route against a Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The consent issue is strong: access to the contact list was represented as necessary for loan processing, but subsequent disclosure of loan status/photo/personal details to contacts is a different use. **Section 6 (1)** is particularly relevant because the Act itself illustrates unnecessary contact-list access.

✓ STRENGTHS & RIGHTS

1 The facts expressly distinguish the stated collection purpose from the later disclosure/use.

✗ RISKS & OBLIGATIONS

1 Actual legal enforceability must be separated from doctrinal mapping because the cited substantive provisions are not yet in force on 29 Aug 2026.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.
 2. For a research benchmark, keep the section mapping but mark it as prospective/doctrinal rather than currently enforceable.
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